

## CHAPTER 34.

An Act to provide for regulating and facilitating the production, supply and sale of coal by owners of coal mines; for the temporary amendment of section three of the Coal Mines Regulation Act, 1908; for the constitution and functions of a Coal Mines National Industrial Board; and for purposes connected with the matters aforesaid.  
[1st August 1930.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

### PART I.

#### · PRODUCTION, SUPPLY AND SALE OF COAL.

1.—(1) There shall be a scheme (hereafter in this Act referred to as “the central scheme”) regulating the production, supply and sale of coal by owners of coal mines situated in Great Britain, which shall, subject to the provisions of the scheme, be administered by a body referred to in this Act as the “central council”; and, subject to the provisions of this Act, there shall be for every district a scheme (hereafter in this Act referred to as a “district scheme”) regulating the production, supply and sale of coal by owners of coal mines situated in the district, which shall, subject to the provisions of the scheme, be administered by a body referred to in this Act as an “executive board.”

Schemes  
regulating  
production,  
supply and  
sale of coal.

(2) No scheme shall have effect under this Act unless it has been approved or made by the Board of Trade.

(3) If before the expiration of the period of six weeks from the passing of this Act, or such further period as the Board of Trade may in any case allow, the central scheme or a district scheme for any district is submitted to the Board by any voluntary association or other persons appearing to the Board to be representative of a majority of the owners of coal mines situated in Great Britain or in the district, as the case may be, the Board may, if

PART I.  
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they are satisfied that the scheme complies with the requirements of this Act, approve the scheme with or without modifications, and in default of such a central or district scheme being so submitted and approved as aforesaid, the Board shall themselves make the scheme.

(4) For the purposes of the last foregoing subsection, the owners of coal mines which, during the period of six months ending on the thirty-first day of December, nineteen hundred and twenty-nine, produced more than half the output of Great Britain or of any district, shall, respectively, be deemed to be a majority of the owners of coal mines situated in Great Britain or in the district:

Provided that, if it appears to the Board of Trade that during the said period of six months the output of a substantial number of coal mines in any district was subject to regulation under any arrangements made by a voluntary association or otherwise, the Board may treat any scheme submitted to them for that district as if the latest period of six months during which the output of those coal mines was not so regulated had been the period mentioned in the foregoing provisions of this subsection.

(5) Any scheme may be amended with the approval of the Board of Trade in manner provided by the scheme, and a new scheme to have effect in substitution for any scheme theretofore in force may at any time be submitted to the Board of Trade by the central council, or, in the case of a new scheme for any district, by the executive board for any district affected thereby, and any scheme so submitted shall, if approved by the Board, have effect accordingly.

(6) Every scheme shall come into force on such date as the Board of Trade may appoint, being (except where a scheme is made by the Board themselves or is to take effect in substitution for a previous scheme) a date not less than one month nor more than three months after the passing of this Act, and the Board may appoint different dates for different schemes, and any scheme for the time being in force shall have effect as if it were enacted in this Act.

(7) The Board of Trade shall, immediately after making or approving any scheme or any amendment thereof, publish the scheme or amendment, as the case

may be, in the London Gazette and for the purpose of the Documentary Evidence Acts, 1868 to 1895, any such scheme or amendment shall be deemed to be an order of the Board.

PART I.  
—cont.

2.—(1) The central scheme shall provide for the constitution of the central council which shall, subject as hereinafter provided, be composed of representatives of all the owners of coal mines in the several districts: Provisions  
of central  
scheme.

Provided that, if the scheme is made by the Board of Trade, the central council shall be composed of persons nominated by the Board of Trade after consultation with such voluntary associations (if any) as may appear to the Board to be representative of the owners aforesaid.

(2) The central scheme shall further provide for the following matters—

- (a) for empowering the central council to appoint officers and do all things necessary for the discharge of their functions under the central scheme;
- (b) for the allocation to each district by the council, after consultation with the executive board for the district, of a maximum output for the district (in this Act referred to as “the district allocation”);
- (c) for the district allocation being determined at such times and for such periods as the council think fit, so however that the council shall be required to amend the allocation during any such period if they are satisfied upon the representation of the executive board for the district that it is necessary to do so in order to meet an increased demand for coal or any class of coal;
- (d) for the consideration by the council of the operation of the district schemes and for the giving of advice thereon by the council to the executive boards for the several districts, with a view to co-ordinating the operation of the district schemes;
- (e) for the collection by the council from the executive boards for the several districts of levies, imposed upon them in proportion to the

PART I.  
—cont.

output or disposal of their respective districts, for the purpose of defraying the expenses of the council;

- (f) for the establishment of a central fund, for the administration and control of the fund (subject to the provisions of the central scheme) by the council, for the payment into the fund of any money received by the council under the provisions of that scheme, and for the payment out of the fund of the expenses of the council and any money payable by the council under the provisions of that scheme;
- (g) for the appointment of trustees for the council, for the vesting in the trustees of the central fund and of all other property of the council, and for enabling the trustees to sue and be sued for and on behalf of the council;
- (h) for requiring the executive boards for the several districts to furnish to the council, or any person authorised by the council, such returns, accounts and other information as the council may consider necessary for the operation of the central scheme;
- (i) for securing that any executive board, which is aggrieved by any act or omission of the council or of any other executive board or of any other persons in respect of their functions under a scheme in force under this Act, may refer the matter to one or more independent arbitrators, appointed in such manner as may be provided by the scheme; and for the manner in which any such reference is to be heard and determined;
- (j) for the imposition on and recovery from an executive board for a district of such monetary penalties as may be specified by the central scheme in the event of that board, or of any other person having functions under the scheme for that district, contravening or failing to comply with the central scheme;
- (k) for the manner in which the assets and liabilities of the council are to be dealt with on the expiration of this Part of this Act.

(3) The central scheme may provide for such matters as appear to the Board of Trade to be incidental to, or consequential on, the foregoing provisions of this section or to be necessary for giving effect to those provisions.

(4) If the central council make to the Board of Trade representations that for the purpose of regulating or facilitating the production, supply, or sale of coal, or any class of coal, by owners of coal mines situated in Great Britain it is necessary or expedient that the central scheme should make provision for any matters in addition to or in substitution for the matters mentioned in subsections (2) and (3) of this section, the Board may lay before each House of Parliament the draft of an order providing that the scheme may be amended so as to provide for the matters with respect to which the representations were made and those matters shall be specified in the draft order, and, if each House resolves that the order shall be made, the Board shall make an order in the terms of the draft to take effect on such date as may be specified in the order, and the scheme may be amended accordingly in manner provided by the scheme.

3.—(1) Every district scheme shall provide for the election of the executive board by all the owners of coal mines in the district in such manner as will ensure that any owners, who were not represented by the voluntary association or other persons who submitted the scheme, shall be fairly represented on the board as first elected :

Provisions  
of district  
scheme.

Provided that, if the scheme is made by the Board of Trade, the executive board shall be composed of persons nominated by the Board of Trade after consultation with such voluntary association (if any) as may appear to the Board of Trade to be representative of the owners aforesaid, or, where there is no such association, with the central council.

(2) Every district scheme shall further provide for the following matters—

- (a) for empowering the executive board to appoint officers and do all things necessary for the discharge of their functions under the scheme;
- (b) for the determination of the class to which any coal produced in the district belongs for any purpose;

PART I.  
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- (c) for the determination, at such times and for such periods as may be decided in accordance with the provisions of the scheme, of the standard tonnage of every coal mine in the district in respect of coal and, if it is so decided in accordance with the provisions of the scheme, in respect of any class of coal, so, however, that the method of determination shall be specified in the scheme, and shall be such a method as will ensure that, for the purpose of the determination, regard shall be had to the special circumstances of every coal mine (including the efficiency and economy of the working of the coal mine, the extent to which it has been developed or is being developed for economic working, the extent to which its output has been increasing or decreasing, and, in the case of the first determination, the proportion which the output of the coal mine bore to the output of the district during some recent period during which no arrangements made by a voluntary association or otherwise were in force regulating the output of any substantial number of coal mines in the district);
- (d) for the determination, at such times and for such periods as may be decided in accordance with the provisions of the scheme, of the proportion (in this Act referred to as the “quota”) of the standard tonnage which each of the coal mines in the district is to be allowed to produce, so, however, that the scheme shall provide—
- (i) that in any district in which a standard tonnage has been determined for any class of coal, a separate quota may be fixed as respects that class; and
  - (ii) that the quota fixed as respects coal or any class of coal shall be the same proportion of the standard tonnage of coal, or of the class of coal, as the case may be, for all coal mines in the district; and
  - (iii) that all quotas shall be so calculated that, during any period for which the district allocation has been fixed by the central council, that allocation shall not be exceeded;

PART I.  
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- (e) for enabling arrangements to be made by owners of coal mines in the district, whereby the output of coal or any class of coal from any such mine may exceed the quota fixed for that mine, as respects coal or that class of coal, so long as the output of coal or that class of coal from some other mine in the district is lower than the quota fixed for that other mine, as respects coal or that class of coal, by an amount not less than the excess;
- (f) for the determination, at such times and for such periods as may be decided in accordance with the provisions of the scheme, of the price below which every class of coal produced in the district may not be sold or supplied by owners of coal mines in the district, and for securing that the actual consideration obtained by the sale or supply of the several classes of coal, exclusive of coal supplied free or at reduced rates for the use of persons who are or have been employed in or about the mine, and the dependants of persons who have been so employed, shall not be less in value than the price so determined;
- (g) for the collection by the executive board from the owners of coal mines in the district of levies, imposed upon the several owners in proportion to the output or disposal of their respective coal mines in the district, for the purpose of defraying the expenses of the executive board and any penalties imposed on, or levies payable by, that board under the provisions of the central scheme;
- (h) for the establishment of a district fund, for the administration and control of the fund (subject to the provisions of the scheme) by the executive board, for the payment into the fund of any money received under the provisions of the central scheme or of the district scheme by the executive board or by any other persons in respect of their functions under the district scheme, and for the payment out of the fund of the expenses of the executive board and of any moneys payable by that board under either of those schemes;

PART I.  
—cont.

- (i) for the appointment of trustees for the executive board, for the vesting in the trustees of the district fund and of all other property of the executive board, and for enabling the trustees to sue and be sued for and on behalf of the executive board;
- (j) for requiring the owners of coal mines in the district to furnish to the executive board or any person authorised by that board such returns, accounts and other information as that board may consider necessary for the operation of the scheme;
- (k) for the production to and inspection by an accountant authorised by the executive board for this purpose of books and accounts relating to any coal mine in the district and for the submission by him of a report to the executive board;
- (l) for securing that any owner of a coal mine in the district, who is aggrieved by any act or omission of the executive board or of any other persons in respect of their functions under the scheme, may refer the matter to one or more independent arbitrators, appointed in such manner as may be provided by the scheme; and for the manner in which any such reference is to be heard and determined;
- (m) for the imposition on and recovery from the owner of any coal mine in the district of such monetary penalties as may be specified by the scheme in the event of his contravention of or failure to comply with the scheme;
- (n) for the manner in which the assets and liabilities of the executive board are to be dealt with in the event of the scheme ceasing to have effect under this Act or on the expiration of this Part of this Act:

Provided that a district scheme may make provision for the determination of the standard tonnage of, and quota for, any two or more coal mines in the district which are worked by the same colliery undertaking as if they were one coal mine.



(3) A district scheme may further provide—

PART I.  
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- (a) for the deduction, if it is so decided in accordance with the provisions of the scheme, from the quota of any coal mine for any period of the tonnage by which, in contravention of the provisions of the scheme, the output of the coal mine has during any previous period exceeded the quota of the coal mine for that previous period, but without prejudice to any penalty that may have been incurred by reason of the excess;
- (b) for such matters as appear to the Board of Trade to be incidental to, or consequential on, the foregoing provisions of this section or to be necessary for giving effect to those provisions.

(4) If the executive board for any district make to the Board of Trade representations that for the purpose of regulating or facilitating the production, supply, or sale of coal, or any class of coal, by owners of coal mines situated in that district it is necessary or expedient that the district scheme should make provision for any matters in addition to or in substitution for the matters mentioned in subsections (2) and (3) of this section, the Board may lay before each House of Parliament the draft of an order providing that the scheme may be amended so as to provide for the matters with respect to which the representations were made, and those matters shall be specified in the draft order, and, unless either House before the expiration of a period of twenty days on which that House has sat next after the draft is laid before it resolves that the order shall not be made, the Board may make an order in the terms of the draft to take effect on such date after the expiration of that period as may be specified in the order, and the scheme may, with the approval of the Board, be amended accordingly in manner provided by the scheme:

Provided that, in the case of any draft order providing that a district scheme may be amended so as to provide for empowering the executive board for the district, subject to the consent of the central council, to collect from the owners of coal mines in the district levies for the purpose of facilitating the sale of any

PART I.  
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class of coal produced in the district, the foregoing provisions of this section shall have effect as if for the reference therein to a period of twenty days there were substituted a reference to a period of twenty-five days.

Effect of  
schemes on  
contracts.

4.—(1) A contract for the sale or supply of coal, whether made before or after the passing of this Act, shall not, unless the terms of the contract otherwise provide, be void or unenforceable as between the parties by reason that it cannot be performed without contravening the provisions of a scheme in force under this Part of this Act.

(2) Where the output of a coal mine exceeds during any period the quota of that mine for that period, the owner of the mine shall not be liable to any penalty under any district scheme, nor shall any deduction be made from the quota of the mine for any subsequent period, in respect of the excess, if it is adjudged by the persons having power under the scheme to impose the penalty or make the deduction or, in the event of an arbitration, by the arbitrator,—

- (a) that the excess was solely occasioned by the performance of contracts made before the eleventh day of December, nineteen hundred and twenty-nine;
- (b) that the excess was reasonably necessary for the performance of those contracts; and
- (c) that, having regard to the provisions of the central scheme, the imposition of the penalty or the making of the deduction, as the case may be, can, without substantial injury to the interests of the owners of other coal mines in the district, be dispensed with.

(3) The owner of a coal mine shall not be liable to any penalty under any district scheme by reason of the fact that he has, in pursuance of any contract, sold or supplied coal at a price below the minimum price determined in respect of that coal under the scheme at the time of the sale or supply, unless the price at which the coal was contracted to be sold or supplied was lower than the minimum price determined in respect thereof under the scheme at the time when the contract was made, or, where no minimum price had then been determined in respect of the coal, unless it is adjudged by the persons

having power under the scheme to impose the penalty, or, in the event of an arbitration, by the arbitrator, that the quantity of coal contracted to be sold or supplied is greater, or the period over which the coal was contracted to be sold or supplied is longer than it would have been if no party to the contract had anticipated that the price would be regulated under the scheme.

PART I.  
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5.—(1) There shall be constituted a national committee of investigation consisting of nine members, which shall be charged with the duty of investigating any complaint made with respect to the operation of the central scheme, and there shall also be constituted for every district a district committee of investigation consisting of five members, which shall be charged with the duty of investigating any complaint made with respect to the operation of the district scheme for the district for which the committee is constituted :

Committees  
of investi-  
gation.

Provided that no such committee shall be empowered to investigate a complaint which could be referred to arbitration by the complainant under the provisions of any such scheme.

(2) The chairman and other members of every committee of investigation shall be persons appointed by the Board of Trade, and, of the members of the committee other than the chairman, one half shall be persons appointed to represent the interests of consumers of coal, and—

- (a) in the case of the national committee two shall be persons appointed to represent owners of coal mines in Great Britain and the other two shall be persons appointed to represent workers employed in or about such coal mines ;
- (b) in the case of a district committee one shall be appointed to represent the owners of coal mines in the district and the other shall be appointed to represent workers employed in or about such coal mines ;

and before appointing any person as a representative of any interest, the Board shall consult such bodies as appear to them to represent that interest.

(3) The meetings and procedure of every committee of investigation shall be regulated in accordance with directions issued by the Board of Trade for the purpose.

PART I.  
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(4) The Board of Trade may appoint a secretary to each committee of investigation, and each such committee may employ such accountants, officers and servants as the Board may, with the approval of the Treasury, determine, and there shall be paid by the Board such remuneration (if any) to the chairman of the committee, such travelling and subsistence allowances to the chairman and members of the committee, such remuneration to the secretary so appointed and to the accountants, officers and servants so employed, and such other expenses of the committee, as the Board, with the approval of the Treasury, may determine, and any expenses of the Board under this subsection shall be defrayed out of moneys provided by Parliament.

(5) Where a committee of investigation is required in pursuance of this section to investigate a complaint with respect to the operation of a scheme, the council or executive board charged with the duty of administering the scheme shall furnish the committee with such returns, accounts and other information relating to the operation of the scheme as the committee considers relevant to the investigation.

(6) If after investigating any complaint made with respect to the operation of a scheme, a committee of investigation is of opinion that any provision of the scheme is contrary to the public interest or ought to be amended on the ground that it is unfair or inequitable in its operation, it shall be the duty of the committee to report the matter to the Board of Trade, and if, after considering the report and consulting such persons as appear to them to be affected, the Board agree with the opinion of the committee, the Board shall make recommendations to the council or executive board charged with the duty of administering the scheme, with a view to the rectification of the matter complained of.

The Board of Trade may hold inquiries for the purpose of assisting them to consider any report made to them under this subsection by a committee of investigation in like manner as they are empowered under section twenty-two of the Mining Industry Act, 1920, to hold inquiries for the purposes of that Act, and that section shall apply with respect to inquiries held by the Board under this subsection accordingly.

(7) If after the Board of Trade have, under the provisions of the last foregoing subsection, made recommendations to the executive board charged with the duty of administering any district scheme, the matter complained of is not rectified to the satisfaction of the Board, the Board may, by order published in the London Gazette, direct that the scheme shall cease to have effect under this Act and the Board shall, subject as hereinafter provided, make a new scheme in substitution therefor:

Provided that, if and so long as the Board of Trade and the central council are both satisfied that, under arrangements made by any voluntary association or otherwise by owners of coal mines in the district, the provisions of the central scheme are being complied with in that district not less effectively than in other districts, the Board shall not, except at the request of the central council, make such a new scheme as aforesaid; and during any period during which, by reason of such arrangements as aforesaid, a district scheme is not in force under this Act for any district, the provisions of this Act relating to the central scheme and the provisions of the central scheme shall, as respects that district, have effect as if for references therein to the executive board or to any other persons having functions under the district scheme there were substituted references to the association by which, or owners by whom, the arrangements were made.

(8) If after investigating any complaint made with respect to the operation of a scheme, a committee of investigation is of opinion that any act or omission of any persons in respect of their functions under the scheme is having or is likely to have an effect contrary to the public interest or ought not to be permitted on the ground that it is unfair or inequitable, it shall be the duty of the committee to make representations with respect thereto to the persons having power under the scheme to rectify the matter, and if, upon such representations being made, the matter is not dealt with to the satisfaction of the committee, the committee may refer the matter to a single independent arbitrator to be appointed by agreement between the committee and the body charged with the duty of administering the scheme, or, in default of agreement, by the Board of Trade, and the persons having power under the scheme to give effect to

PART I.  
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PART I.  
—*cont.*

the decision shall comply therewith and exercise their functions under the scheme in conformity with the decision.

(9) A committee of investigation, upon referring any matter to arbitration in accordance with the last foregoing subsection, shall make a report thereon to the Board of Trade, and shall also report to the Board the arbitrator's decision and what steps have been taken to comply therewith, and the Board shall have power to make in the scheme such amendments (if any) as they think necessary for securing that the scheme will be administered in conformity with the decision, and in particular may by such amendments alter the composition of the body charged with the administration of the scheme as if the scheme had been made by the Board.

(10) Any person aggrieved—

(a) by the neglect or refusal of a committee of investigation to report to the Board of Trade that any provision of a scheme is contrary to the public interest, or ought to be amended on the ground that it is unfair or inequitable in its operation, or where such a report has been made is aggrieved by any act or omission of the Board of Trade in relation thereto; or

(b) by the neglect or refusal of a committee of investigation to refer a complaint to arbitration under subsection (8) of this section;

may, with the leave of the Railway and Canal Commission, appeal to that Commission who shall have power to make such order as they think fit.

(11) The Board of Trade shall make regulations for the conduct of references to arbitration under this section, and such regulations shall make provision as to the persons by whom the remuneration of the arbitrator is to be defrayed, and all such regulations shall be laid before Parliament.

Information  
to be fur-  
nished to  
Board of  
Trade.

6. It shall be the duty of the central council as respects the central scheme, and of the executive board for any district as respects the scheme for that district, to furnish to the Board of Trade, in such manner and form as the Board may direct, such returns, accounts and other information with respect to

the operation of the scheme as the Board may at any time require.

PART I.  
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7. The Board of Trade shall in the year nineteen hundred and thirty-one and each subsequent year lay before Parliament a report upon the operation of all the schemes for the time being in force under this Act.

Report to be  
laid before  
Parliament.

8. No information with respect to any particular undertaking shall be included in any report published under this Part of this Act by the Board of Trade, the central council, an executive board, the national committee of investigation, or a district committee of investigation, unless the owner of the undertaking agrees thereto, and any person who obtains any information in the exercise of the powers conferred upon the council or upon any executive board by any scheme made in pursuance of this Part of this Act, or conferred upon any such committee by this Part of this Act, shall be required to make a declaration of secrecy in such form as may be prescribed by the Board of Trade, and any person who discloses any information so obtained by him shall be guilty of a misdemeanour and liable, on conviction on indictment, to imprisonment for a term not exceeding two years, or to a fine not exceeding one hundred pounds, or to both such imprisonment and fine, or on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds, or to both such imprisonment and fine:

Information  
obtained  
under  
Act not to  
be disclosed.

Provided that nothing in this section shall apply to the publication or disclosure of any information in so far as it is required to be published or disclosed for the purposes of legal proceedings (including arbitrations) under this Part of this Act or any scheme made thereunder or for any report of such proceedings, or in so far as it is required or authorised by this Part of this Act or any scheme made thereunder to be published or disclosed to the Board of Trade, the central council, a committee of investigation or an executive board.

9.—(1) If any person contravenes or fails to comply with any provision of this Part of this Act or of a scheme in force thereunder, and no penalty for the contravention or failure is expressly provided by this Part of this Act or the scheme, he shall be liable on summary conviction to a fine not exceeding one hundred pounds, and to a further fine not exceeding twenty

Offences and  
penalties.

**PART I.** pounds for every day on which the contravention or  
 —*cont.* failure occurs or continues.

(2) Where an offence under this Part of this Act or a scheme in force thereunder, committed by a corporation, is proved to have been committed with the consent or connivance of, or to have been facilitated by any neglect on the part of, any director, manager, secretary or other officer of the corporation, he, as well as the corporation, shall be deemed to be guilty of an offence and shall be liable to be proceeded against and punished accordingly.

**Duration of  
Part I.**

**10.**—(1) This Part of this Act shall continue in force until the thirty-first day of December, nineteen hundred and thirty-two, and no longer, unless Parliament otherwise determines :

Provided that the expiration of this Part of this Act shall not—

- (a) affect the previous operation of, or anything duly done or suffered under, this Part of this Act; or
- (b) affect any right, privilege, exemption, obligation, or liability acquired, accrued, or incurred under this Part of this Act; or
- (c) affect any penalty or punishment incurred under this Part of this Act; or
- (d) affect any investigation, legal proceeding, or remedy in respect of any such right, privilege, obligation, liability, penalty, or punishment as aforesaid;

and any such investigation, legal proceeding, or remedy may be instituted, continued, or enforced, and any such penalty or punishment may be imposed as if this Part of this Act had not expired.

(2) The provisions of this Part of this Act making it an offence to disclose information shall continue in force notwithstanding the expiration of this Part of this Act.

## **PART II.**

### **REORGANISATION OF COAL MINING INDUSTRY.**

**Constitution  
of Coal  
Mines Re-  
organisation  
Commission.**

**11.**—(1) There shall be constituted a Coal Mines Reorganisation Commission (hereafter in this section referred to as “the Commission”), which shall consist of five commissioners appointed by the Board of Trade



for such period and subject to such conditions as may be determined by the Board, and the Board shall appoint one of the commissioners to be chairman:

PART II.  
—cont.

(2) A person shall be disqualified for being appointed, or being, a commissioner so long as he is a Member of the Commons House of Parliament.

(3) A commissioner shall within three months after his appointment sell or dispose of any interest or shares or securities which he may hold in his own name or in the name of a nominee for his own benefit in any undertaking carrying on in Great Britain the business of coal mining or supplying or selling coal or the manufacture or sale of by-products of coal or machinery or plant for coal mining; and it shall not be lawful for a commissioner while he holds office to acquire for his own benefit any interest or shares or securities in any such undertaking and if a commissioner, under any will or succession or otherwise, becomes entitled for his own benefit to any interest or shares or securities in any such undertaking he shall sell or dispose of it or them within three months after he has so become entitled thereto.

(4) If a commissioner becomes disqualified for holding office, or fails to comply with the provisions of the last foregoing subsection, or becomes in the opinion of the Board of Trade unfit to continue in office or incapable of performing his duties under this Act, the Board shall forthwith declare his office to be vacant, and shall notify the fact in such manner as they think fit, and thereupon the office shall become vacant.

(5) For the purposes of any business for which a quorum of the commissioners is required by this Act to be present, three commissioners personally present shall be a quorum, but, save as aforesaid, the Commission shall have power to regulate their own procedure, and may act notwithstanding a vacancy in their number.

(6) The Board of Trade may appoint a secretary to the Commission and the Commission may employ such officers and servants as the Board may, with the approval of the Treasury, determine, and there shall be paid by the Board such remuneration to the commissioners and to the secretary, officers, and servants of the Commission and such other expenses of the Commission as the Board

PART II.  
—cont.

may, with the approval of the Treasury, determine, and any expenses of the Board under this subsection shall be defrayed out of moneys provided by Parliament.

(7) Any document purporting to be issued by the Commission and to be signed by the secretary or any person authorised to act in that behalf shall be received in evidence and be deemed to have been so issued without further proof unless the contrary is shown.

General  
functions of  
Coal Mines  
Reorgan-  
isation  
Commission

12.—(1) It shall be the duty of the Coal Mines Reorganisation Commission (hereafter in this section referred to as “the Commission”) to further the reorganisation of the coal mining industry with a view to facilitating the production, supply, and sale of coal by owners of coal mines, and for that purpose to promote and assist, by the preparation of schemes and otherwise, the amalgamation of undertakings consisting of or comprising coal mines where such amalgamations appear to the Commission to be in the national interest.

11 & 12  
Geo. 5. c. 7.

(2) The Commission may hold such inquiries as they consider necessary or desirable for the discharge of their functions under this Act, and, in respect of any meeting of the Commission at which a quorum of the commissioners is present for the purpose of any such inquiry, the Tribunals of Inquiry (Evidence) Act, 1921, (other than paragraph (a) of section two thereof) shall apply to the Commission as if it were a tribunal established in manner provided by that Act and as if that Act had been applied thereto in the manner thereby provided.

(3) The Commission may from time to time employ such technical and professional agents as they consider necessary or desirable for the discharge of their functions under this Act, and, subject as hereinafter provided, there shall be paid by the Board of Trade such remuneration to the agents so employed as the Board may, with the approval of the Treasury, determine, and the expenses of the Board under this subsection shall be defrayed out of moneys provided by Parliament:

Provided that a sum certified by an accountant appointed by the Board of Trade to be equal to the amount of any expenses properly incurred by the employment of such agents as aforesaid for the purpose of promoting or assisting the amalgamation of any undertakings shall, in the event of the undertakings

being amalgamated, be repaid to the Board by the owners of the amalgamated undertaking. PART II.  
—cont.

**13.**—(1) If it appears to the Coal Mines Reorganisation Commission that it is expedient for the purpose of promoting the more economical and efficient working, treating or disposing of coal that an amalgamation scheme or an absorption scheme, under Part I of the Mining Industry Act, 1926 (hereinafter in this section referred to as “the Act of 1926”), should be prepared and submitted with respect to any two or more undertakings consisting of or comprising coal mines, the Commissioners shall require the owners of those undertakings to prepare and submit to the Board of Trade an amalgamation scheme or absorption scheme with respect to those undertakings framed in accordance with the provisions of Part I of the Act of 1926, and if the owners fail so to submit such a scheme within such a time as may have been specified by the Commissioners, the Commissioners shall themselves prepare and submit such a scheme to the Board of Trade, and for the purposes of that Part of that Act any scheme so prepared and submitted by the Commission shall be deemed to have been prepared and submitted in manner provided by subsection (1) or (2), as the case may be, of section one of that Act, and that Act shall apply accordingly : Amend-  
ments of  
Part I of  
16 & 17  
Geo. 5. c. 28.

Provided that—

- (a) no such scheme of amalgamation shall provide, without the consent of the owner of the undertaking, for the separation of the treating or disposing of coal from the working thereof, or, in the case of an undertaking of which the primary object is not coal mining, for the separation from the undertaking of any coal mine worked as ancillary to such primary object;
- (b) no coal mine belonging to a company whereof all the shares are held by the owner of an undertaking of which the primary object is not coal mining shall, so long as it is worked as ancillary to such primary object, be amalgamated or absorbed by virtue of a scheme prepared under this section without the consent of the owner of that undertaking.

PART II.  
—cont.

(2) In the consideration by the Railway and Canal Commission of a scheme submitted to the Board of Trade under this section, the following paragraph shall be substituted for paragraph (a) of the proviso to subsection (2) of section seven of the Act of 1926 (which relates to consideration of schemes by the Commission):—

“(a) shall not confirm a scheme unless satisfied—

(i) that it would be in the national interest to do so, and

(ii) in the case of an amalgamation scheme that the scheme

(a) will result in lowering the cost of production or disposal of coal, and

(b) will not be financially injurious to any of the undertakings proposed to be amalgamated, unless the scheme contains provisions for the purchase, at a price to be fixed in default of agreement by arbitration, of any such undertaking; and

(iii) that the terms of the scheme are fair and equitable to all persons affected thereby; and”

(3) If the owner of any undertaking (in this subsection referred to as the “transferor undertaking”) proposed by any scheme submitted by the Coal Mines Reorganisation Commission to be amalgamated with, or absorbed in, any other undertaking (in this subsection referred to as the “transferee undertaking”) satisfies the Railway and Canal Commission that any property, whether real or personal, belonging to the transferor undertaking formed, at the date of the passing of this Act, a reserve which, when the scheme was submitted, was not required for the efficient carrying on of the transferor undertaking, the Railway and Canal Commission shall not confirm the scheme except after making such modifications, if any, as may be necessary for securing that that property will not be transferred to the transferee undertaking.

(4) For the purposes of any scheme under Part I of the Act of 1926 the value of the undertaking of every constituent or absorbed company shall be assessed upon the basis of what would have been the value thereof as between a willing buyer and a willing seller if this Act

had not been passed, and no such scheme shall be submitted to the Board of Trade under the said Part I unless the Coal Mines Reorganisation Commission have certified that such values have been so assessed for the purposes of that scheme.

PART II.  
—*cont.*

(5) Where a scheme is referred by the Board of Trade to the Railway and Canal Commission under section six of the Act of 1926, the Coal Mines Reorganisation Commission shall be entitled to appear and be heard at any proceedings in connection with the scheme.

(6) No scheme shall be submitted or certificate granted by the Commission under this section except in pursuance of a decision made at a meeting at which a quorum of the Commissioners is present.

(7) Where an amalgamation scheme submitted to the Board of Trade by the owners of two or more undertakings under subsection (1) of section one of the Act of 1926 is certified by the Coal Mines Reorganisation Commission to be in the national interest, and the owners submitting the scheme represent to the Board that it is unnecessary for the purpose of giving effect to the scheme that it should be confirmed by the Railway and Canal Commission under the Act of 1926, it shall not be necessary for the Board to refer the scheme to the Railway and Canal Commission under that Act, but if the Board certify that the provisions of the scheme as to any debentures or as to the issue of any share or loan capital are reasonably required for the purpose of the amalgamation, subsection (2) of section five of the Act of 1926 (which grants certain exemptions from stamp duty in respect of schemes confirmed by the Railway and Canal Commission) shall apply in respect of the scheme and of anything done in pursuance thereof as if the scheme had been confirmed by the Railway and Canal Commission.

(8) This section shall be construed as one with Part I of the Act of 1926.

### PART III.

#### HOURS OF WORK.

14.—(1) During the continuance of the Coal Mines Act, 1926, section three of the Coal Mines Regulation Act, 1908, shall have effect as if for the words "one hour" there were therein substituted the words "half an hour":

Temporary  
amendment  
of 8 Edw. 7.  
c. 57. s. 3.  
16 & 17  
Geo. 5. c. 17.

**PART III.**  
—*cont.*

8 Edw. 7.  
c. 57.

9 & 10  
Geo. 5. c. 48.

Provided that, if an application, by agreement between representative organisations of the owners of and the workers employed in or about the coal mines in any district, is made to the Board of Trade in that behalf with the approval of the Mining Association of Great Britain and the Miners' Federation of Great Britain, the Board of Trade shall make an order, which shall become effective forthwith, that the substitution of the words "half an hour" for the words "one hour" in section three of the Coal Mines Regulation Act, 1908, shall not apply as respects any mine in such district at which the daily hours below ground on an average taken over the twelve weekdays in any fortnight do not exceed the daily hours permissible under section one of the Coal Mines Regulation Act, 1908, as amended by the Coal Mines Act, 1919, by more than the extension of half an hour made under section three of the Coal Mines Regulation Act, 1908, as amended by the Coal Mines Act, 1926, and this section.

At any mine where an extension of time is in any week made under the said section three, the workmen, by agreement between representatives of employers and workmen, may, notwithstanding anything in the Coal Mines Regulation Act, 1908, as amended by any subsequent enactment, begin their period of work on the Saturday of that week before twenty-four hours have elapsed since the beginning of their last period of work, so long as at least eight hours have elapsed since the termination thereof.

(2) This section shall come into operation at the expiration of the period of four months from the passing of this Act.

**PART IV.**

**COAL MINES NATIONAL INDUSTRIAL BOARD.**

Power to  
constitute  
Coal Mines  
National  
Industrial  
Board and  
functions  
thereof.

**15.**—(1) The Board of Trade may by order constitute a Coal Mines National Industrial Board (in this section referred to as the "National Board") consisting of seventeen members appointed by the Board of Trade, so, however, that before appointing the members of the National Board other than the chairman, the Board of Trade shall consult the Mining Association of Great Britain as to six, the Miners' Federation of Great Britain as to six, the Federation of British Industries and the

Association of British Chambers of Commerce as to one, and each of the following bodies as to one, that is to say—

PART IV.  
—*cont.*

The General Council of the Trade Union Congress;  
The Co-operative Union;  
The National Confederation of Employers' Organisations;

and the Chairman of the National Board shall not be a member of any of the bodies aforesaid.

(2) Before appointing any person to fill a vacancy among the members of the National Board, the Board of Trade shall consult the body (if any) which they were required by this section to consult before appointing his predecessor. If a member becomes in the opinion of the Board of Trade unfit to continue in office or incapable of performing his duties under this Act the Board shall forthwith declare his office to be vacant and shall notify the fact in such manner as they think fit and thereupon the office shall become vacant.

A member may resign his office by notice in writing under his hand given to the Board of Trade.

(3) The Board of Trade may appoint a secretary to the National Board, and there shall be paid by the Board of Trade such remuneration (if any) to the chairman, such travelling and subsistence allowances to the chairman and members and such remuneration to the secretary of the National Board, and such other expenses of the National Board, as the Board of Trade, with the approval of the Treasury, may determine, and any expenses of the Board of Trade under this subsection shall be defrayed out of moneys provided by Parliament.

(4) Any agreement between the owners of, and the workers employed in or about, the coal mines in any district providing for the regulation of wages or other conditions of labour throughout the coal mines in the district may be sent to the National Board, and it shall be the duty of the National Board to record any agreement so sent.

(5) Where there exists, or is apprehended, any dispute between the owners of and the workers employed in or about the coal mines in any district as to the terms of a proposed agreement between such owners and workers providing for the regulation of wages or other conditions of labour throughout the coal mines in the district, and there has been a failure to settle the dispute

PART IV.  
—*cont.*

in accordance with the arrangements existing in the district for the settlement thereof, either the owners or the workers may refer the dispute to the National Board who shall thereupon inquire into the dispute and report thereon to the owners and workers concerned.

(6) The Board of Trade may make rules regulating the procedure of the National Board, and those rules may, among other things, provide—

- (a) for enabling the National Board to act notwithstanding any vacancy in their number;
- (b) for the hearing of a reference in public or in private, at the discretion of the National Board.

(7) There shall not be included in any report or publication made or authorised by the National Board any information, obtained by the National Board in the course of a reference to them, as to any trade union or as to any particular undertaking, which is not available otherwise than through evidence given during the reference, except with the consent of the secretary of the trade union or of the owner of the undertaking in question, and if any individual member of the National Board or any person concerned in the reference, without such consent, discloses any such information, he shall be liable on summary conviction to a fine not exceeding one hundred pounds.

PART V.

GENERAL.

Application  
of 52 & 53  
Vict. c. 49.

**16.—**(1) The provisions of the Arbitration Act, 1889, shall not apply to any reference to the Coal Mines National Industrial Board; except in so far as any of the said provisions may be applied by the rules made under Part IV of this Act.

(2) No scheme or rules approved or made under Part I of this Act shall exclude the application of the Arbitration Act, 1889, to any arbitration held in pursuance of that Part of this Act except in so far as that Act is inconsistent with that Part of this Act:

Provided that, where on any such arbitration an award is stated in the form of a special case for the opinion of the court under paragraph (b) of section seven of that Act, the decision of the High Court thereon shall be final.



17. The expenses of the Board of Trade which are by this Act directed to be defrayed out of moneys provided by Parliament shall not be taken into account in computing the amount of the expenses of the Department of Mines for the purposes of the limit imposed by subsection (2) of section five of the Mining Industry Act, 1920, upon the expenses of that department.

PART V.  
—*cont.*  
Exclusion of  
10 & 11  
Geo. 5. c. 50,  
s. 5 (2).

18.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them:— Interpretation.

“Class,” in relation to coal, means a class determined according to the nature of the coal or of the trade, industry or other category of consumer supplied, or according to whether it be supplied for use in Great Britain or for export to any other country:

“Coal” includes bituminous coal, cannel coal, and anthracite:

“Coal mine” means any mine or open working where the getting of coal (including for the purposes of Part IV of this Act, lignite or brown coal), is the principal object of the mining or quarrying operations:

“Disposal” in relation to a coal mine means the tonnage in saleable coal raised and weighed at the pit head at that coal mine, after deducting all coal to be used for the purpose of working the mine and all coal to be supplied free or at reduced rates for the use of persons who are or have been employed in or about the mine and the dependants of persons who have been so employed, and in relation to a district means the aggregate tonnage in saleable coal raised and so weighed at all the coal mines in the district after making the deductions aforesaid:

“District” means for the purposes of Part I of this Act a district mentioned in Part I of the Schedule to this Act, subject to any amalgamation or adjustment of districts under Part II of that Schedule; and for the purposes of Parts III and IV of this Act has the same meaning as it has for the purpose of the arrangements for the time being in force for the regulation of wages in the coal mining industry:

“Functions” includes powers and duties:

PART V.  
—*cont.*

“Output” in relation to a coal mine means the tonnage in coal raised and weighed at the pit head at that coal mine, and in relation to Great Britain or a district means the aggregate tonnage in coal raised and so weighed at all the coal mines in Great Britain or the district, as the case may be:

1 & 2 Geo. 5.  
c. 50.

“Owner” has the same meaning as in the Coal Mines Act, 1911.

(2) The references in this Act to the London Gazette shall, in so far as any scheme or order relates to Scotland, be construed as references to the Edinburgh Gazette.

Short title,  
citation and  
extent.

**19.**—(1) This Act may be cited as the Coal Mines Act, 1930, and the Coal Mines Acts, 1887 to 1926, and this Act may be cited together as the Coal Mines Acts, 1887 to 1930.

(2) This Act shall not extend to Northern Ireland.

Section 18.

## SCHEDULE.

### PART I.

#### DISTRICTS FOR PURPOSES OF PART I OF ACT.

Northumberland.  
Durham.  
Cumberland.  
Lancashire and Cheshire.  
Yorkshire.  
Derbyshire (exclusive of South Derbyshire).  
South Derbyshire.  
Nottinghamshire.  
Leicestershire.  
Shropshire.  
North Staffordshire.  
South Staffordshire (exclusive of Cannock Chase) and  
Worcestershire.  
Cannock Chase.  
Warwickshire.  
Forest of Dean.  
Bristol.  
Somerset.  
Kent.  
North Wales.  
South Wales (including Monmouthshire).  
Scotland.

## PART II.

PROVISIONS AS TO AMALGAMATION AND ADJUSTMENT  
OF DISTRICTS.

1. If an application is made to the Board of Trade for the amalgamation of two or more districts, and the Board are satisfied that the application has been duly approved in accordance with paragraph 3 of this Part of this Schedule, the Board may by order direct that those districts be treated as one district.

2. If an application is made to the Board of Trade by the owner of a mine situate in any district that the mine should be treated as if it were situate in any other adjoining district, and the Board are satisfied that the application has been duly approved in accordance with the next following paragraph and that the mine has, for the purpose of the arrangements in force for the regulation of wages in the coal mining industry, been customarily treated as a mine situate in that other district, the Board may by order direct that that mine shall be treated as situate in that other district.

3. An application shall not be deemed to have been duly approved for the purposes of this Part of this Schedule unless it has been approved as respects every district to which the application relates by the owners of coal mines which produced more than half the output of those districts respectively, during the period of six months ending on the thirtieth day of June or the thirty-first day of December last preceding the date of the application, whichever day is the later :

Provided that if in the case of an application made before the first day of January, nineteen hundred and thirty-one, it appears to the Board of Trade that during such period of six months as aforesaid the output of a substantial number of coal mines in any district was subject to regulation under any arrangements made by a voluntary association or otherwise, the Board may treat any application submitted to them which relates to that district as if the latest period of six months during which the output of those coal mines was not so regulated had been the period mentioned in the foregoing provisions of this paragraph.

4. If for the purpose of the arrangements for the time being in force for the regulation of wages in the coal mining industry any adjustments are made in the districts specified in Part I of this Schedule, the Board of Trade may, if they think fit, by order direct that corresponding adjustments shall be made for the purposes of Part I of this Act, and upon the making of any such order, Part I of this Schedule shall have effect subject to any modification specified in the order.